



## CHAPTER xi.

An Act to confirm a Provisional Order of the Minister of Health relating to the Irwell Valley Water Board.

[15th June 1945.]

**W**HEREAS under the provisions of the Public Health 38 & 39 Vict. Act 1875 the Minister of Health has made a Provisional <sup>c. 55.</sup> Order which needs confirmation by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order of the Minister of Health which is set out in the schedule to this Act is hereby confirmed and shall have full validity and force. Order in schedule confirmed.

2. This Act may be cited as the Ministry of Health Provisional Short title. Order Confirmation (Irwell Valley Water Board) Act 1945.



## SCHEDULE.

### IRWELL VALLEY WATER BOARD.

*Provisional Order extending the period limited by a local Act for the redemption and extinction of certain perpetual annuities.*

WHEREAS the Irwell Valley Water Board (hereinafter called "the Board") carry on an undertaking for the supply of water under and by virtue of the Irwell Valley Water Board Acts 1900 to 1938 (hereinafter called "the local Acts");

3 Edw. 7.  
c. ccxxxiv.

25 & 26 Geo. 5.  
c. xxxii.

35 & 36 Vict.  
c. cxlvi.

63 & 64 Vict.  
c. cxliv.

And whereas it is provided by section 55 (Periods for repayment of principal moneys and for redemption of stock and annuities) of the Bury and District Joint Water Board Act 1903 (hereinafter called "the Act of 1903") as amended by virtue of section 3 (Change of name) of the Irwell Valley Water Board Act 1935 that the Board shall make provision for the redemption and extinction within fifty years from the thirty-first day of March one thousand nine hundred and three of certain annuities created under the Bury Improvement Act 1872 as consideration for the purchase of certain water undertakings and of moneys borrowed or to be borrowed for the purchase of such annuities;

And whereas it is provided by section 43 (Extension of sections 176 and 303 of Public Health Act 1875 to Board) of the Bury and District Water (Transfer) Act 1900 that section 303 of the Public Health Act 1875 shall apply to the Board as if they were a local authority within the meaning of that section;

And whereas the Board have made application to the Minister of Health for the issue of a Provisional Order to alter or amend the Act of 1903 in the manner hereinafter appearing:

Now therefore the Minister of Health in pursuance of the powers given him by the said section 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders as follows:—

1.—(1) This Order may be cited as the Irwell Valley Water Board Order 1945 and shall come into operation on the date of the Act of Parliament confirming it.

(2) The local Acts and this Order may be cited together as the Irwell Valley Water Board Acts and Order 1900 to 1945.

2. The Act of 1903 shall be altered by the substitution in paragraph (c) of the said section 55 thereof of the words "fifty-five years" for the words "fifty years."

Printed by Sir NORMAN GIBB SCORGIE, C.V.O., C.B.E.,  
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King's Printer of Acts of Parliament

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